"De-facto and De-jure sovereignty"

De-facto sovereignty

De-facto sovereign is one who has no legal claim to sovereignty but possesses it in fact and exercises necessary force to make and enfore its laws.

Sovereignty

"Sovereignty is the absolute and perpetual power of the state that is, the greatest power to command."
- Jean Bodin

Here is an interesting piece of information!

Napoleon became the de facto sovereign after he had over thrown the directory. Franco became the de facto sovereign after he had dislodged the legal sovereign in Spain after Mussolini's black shirt march on October 28, 1922. Mussolini became the prime minister in the legal manner. He ruled the parliament and ruled the country through parliament. Parliament remained the legal sovereign but he was the actual or de facto sovereign. Hitler also did the same in Germany. He controlled the legal sovereign and became the de facto sovereign.

Quotable Quote

Sovereignty of the people therefore can mean nothing more the power of the majority of the electorate, in a system of approximate universal suffrage prevails, acting through legally established channels to express their will and make it prevail.

-Dr. Garner

De-jure sovereignty

De-jure sovereign is one who has a legal claim to sovereignty but does not possess it in fact.

DO YOU KNOW?

Sovereignty can no more be alienated than a tree can alienate its right to sprout or a man can transfer his life or personality to another without self destruction *- Lieber*

3.1.5 What is Pluralism?

Pluralism is a powerful protest against the monistic theory of sovereignty, which endows the state with supreme and unlimited power.

Exponents of pluralist theory

- Harold J. Laski
- J.N. Figgis
- Ernest Barker
- G.H Cole
- Maciver

Pluralist Theory



The nature of the state is such it attempts to resolve the disputes or conflicts that arise between these various groups in a way the is in everyone's best interests.

The dawn of pluralist theory

With the advent of the welfare state there came a rapid increase in the functions of the state and there remained no sphere of life with which the state did not interfere, the sovereign and the supreme state also

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